

IN THE CIRCUIT COURT OF COLE COUNTY, MISSOURI

Rob Sanders,

Plaintiff,

vs.

City of Columbia, Missouri,

Defendant.

Case No: 14AC-CC00040

**PLAINTIFF'S MEMORANDUM IN SUPPORT OF REVERSING
AGENCY DECISION**

On August 15, 2011, former City of Columbia Police Officer Rob Sanders used force against a prisoner in one of the Police Department's holding cells. An exhaustive Internal Affairs investigation concluded that Officer Sanders had not used excessive force, had provided the required medical attention, and had not abused or improperly treated the prisoner. Sanders' Sergeant, Lieutenant, Captain, and Deputy Chief all concurred with those findings. Nonetheless, fearing negative press and "embarrassment," the Chief of Police terminated Sanders, and the termination was upheld by the City Manager. The Chief and City Manager's rationale are the epitome of arbitrariness, capriciousness, unreasonableness, and abuse of discretion. The termination must be reversed.

I. BACKGROUND**A. Events leading up to Sanders' use of force.**

On August 15, 2011, two City of Columbia Police Officers, Kasper and Sedgwick, went to the residence of Ken Baker to arrest him for felony warrants. Baker, intoxicated and combative, engaged the two officers – both of whom were very physically fit – in a knock-down, drag-out fight that lasted over two minutes. During the fight, Baker managed to unlatch Kasper's gun belt. Sedgwick eventually sprayed Baker with pepper mace, but Baker merely 'spit it out and kept on fighting.' While this was occurring, one of the Officers' radio buttons was

pushed, resulting in an “open” microphone, meaning that the sounds of the fight were broadcast over the radio. The sound of the fight was so violent that twelve additional officers – nearly the entire shift – raced to the scene. Transcript pp. 259-67, 285-88, 392.

The first extra officer to arrive was Crites, another very fit officer, who went into the house to help control Baker. Tr. 392-94. The second was Rob Sanders, who arrived just as Kasper, Sedgwick and Crites were walking out of the house with Baker in custody. Sanders saw Kasper’s gunbelt falling off, and Kasper heaving so much from fatigue that he could not even re-latch it. Sedgwick, too, was clearly “gassed,” and Sanders believed that Baker had succeeded in fighting three fit officers for over two minutes – an “exhausting” length fight in law enforcement. Tr. 311-14, 397, 586. Baker was not fatigued, and remained so belligerent and combative that he had to be forcefully restrained in order to be searched. While attempting to control the still-resistive Baker, Crites applied a wrist lock, which is a pain compliance, joint manipulation technique. Crites had to apply a great deal of pressure, but Baker continued to resist with no apparent effect. Sanders was present for all of this interaction. Tr. 314-15, 395-97.

Finally, the officers were able to search Baker, though he continued to resist. Baker remained combative enough that, in order to get him into the rear seat of Crites’s car for transport back to the Police Department, the officers almost had to pull him through from the opposite door. By now, several other officers and supervisors were on the scene and Sanders, at the instruction of Sergeant Barb Buck, followed Crites back to the Department in his own car, to assist with Baker. Tr. 315-16. During the ride in Crites’s patrol car, Baker remained belligerent, stating, “I hate all you motherfuckers;” “I wish all you all harm;” and “I wish somebody’d blow your-all’s heads off.” Tr. 397-98.

Once in the Police Department garage, Baker refused to get out of the car. Sanders came

over and asked Crites if Baker had calmed down. Sanders then spoke to Baker and, in an attempt to build rapport, got Baker to agree to be cooperative in exchange for helping him wash the mace from his face. Using a garden hose in the garage, Sanders then spent over four minutes running water over Baker's head, face and neck – essentially, anywhere Baker asked him to. Sanders even held Baker's shirt up to his face so that Baker could blow his nose. Sanders continued to irrigate Baker's face until Baker told him that he was ready to stop. Tr.316-17, 323-24.

During this contact and communication, Sanders noticed a number of things. First, he noted Baker's strong build and physique, which Sanders described as "stout." Sanders immediately had the impression that Baker had the sort of sheer strength of someone in the construction trade. Second, Sanders noted that Baker was calling him "Boss" during their conversation. Sanders knew from previous training that "Boss" is a term used by prison inmates when speaking to guards. Third, Sanders noted that Baker had several tattoos. However, the tattoos were not clean and sharp, as one would get in a professional shop; rather, they were blurry and lacked detail. Sanders, from his training, believed they were consistent with prison tattoos that someone got when doing "hard time" in the penitentiary. Sanders gathered that Baker had served time in prison. As taught to him in his past training, Sanders was aware that prison inmates commonly practice techniques to assault guards during cell incursions and extractions. At the time he took Baker from the garage into the holding cell area, the totality of the circumstances indicated to Sanders that Baker was very strong, very fit, intoxicated, impervious to pain to some degree, had a propensity to violence, and likely had served real prison time. Sanders also knew that people under the effects of alcohol and/or drugs are often on a "roller coaster" – cooperative one moment, violent the next. In sum, Sanders knew – rightly – that Baker was a dangerous individual and someone not to be trifled with. Tr. 317-23

B. Sanders' use of force in the holding cell.

Because Sanders was not the arresting officer, and because the arresting officer was not yet there, Sanders and Crites could not begin the booking process. Instead, they took Baker to a holding cell to wait for Kasper and Sedgwick's return. Although irrigation with water is the initial treatment for mace, once that is done the effects are alleviated only by time and air. Therefore, Sanders gave Baker a paper towel to help him fan his face. And while the Department was supposed to have decontamination wipes in the booking area, Sanders and Crites both looked and could not find any. Furthermore, the water fountain/sink apparatus in Baker's holding cell did not work, and had not worked for many years. Tr. 324-29.

Once in the holding cell, Baker became agitated again, demanding water. He repeatedly attempted and failed to get the sink to work. Baker was ranting about the water. Baker pounded on the cell door. Sanders returned to the cell, opened the door, and instructed Baker to stop pounding on the door; he told Baker that if he pounded on the door again, he would be handcuffed to the "ring" in the back of the cell, which was just that – a metal ring attached to the floor. Sanders closed the door and left. Tr. 329-34.

By this time, another officer, Hibler, had arrived. Baker began pounding on the cell door again. Sanders, Crites and Hibler all went to the cell. Sanders opened the door and instructed Baker to have a seat at the rear of the cell. Baker refused, cursing at Sanders, "Fuck you!" Sanders employed his verbal judo training and said to Baker, "Sir, is there anything I can say or do to make you peacefully have a seat at the back of the holding cell without using physical force against you." Baker responded with the same curse. Tr. 334-36. Because the cell door is not wide enough to fit more than one officer through at a time, Sanders entered the cell before Crites and Hibler. Sanders would usually use a leg sweep technique to take someone down in that situation, but he determined that Baker was too close to the toilet and the concrete bench in the

cell, and he feared Baker hitting his head. So instead, intending to knock Baker over onto his rear end and thereby enable the other two officers to get into the cell and control Baker, Sanders pushed Baker with two hands. Unfortunately, rather than stumble backwards or go down onto his bottom, Baker went several feet back into the rear wall of the cell and struck his head. Tr. 339-42. The officers then handcuffed him to the ring.

Outside of the cell, Sanders realized he had some blood on his arm. He confirmed that it was not his own blood, so the officers went back into the cell to check Baker. They found a small laceration on Baker's head. Baker was conscious, and was threatening to kill Sanders. Tr. 343-44. Sanders instructed Hibler to call for medical assistance. Joint Communications would not answer their phone, and the officers' radios do not work well in the holding cell area; therefore, Hibler eventually had to call the Station Master. Once notified, the Station Master was to watch Baker on her video monitor while officers waited for paramedics to arrive. Tr. 345-47. Baker remained belligerent even after the paramedic arrived, and the medic almost left without even looking at Baker. Tr. 347-48. Ultimately, the medic determined Baker should go to the hospital, and Baker was transported there by officers.

C. The aftermath of Sanders' use of force, and his termination.

In the Columbia Police Department, any use of force resulting in injury must be reviewed. During the review of Sanders' use of force, investigators viewed a video taken from the camera in Baker's cell. Chief of Police Burton saw the video and, before any actual investigation had been done, announced to the Department's command staff that he was going to fire Sanders. Tr. 129, 550-51. Others convinced Burton to allow an investigation, but he stated that nothing was going to change his mind and he was going to fire Sanders regardless of the outcome. Tr. 131. He charged Sanders with using excessive force in contravention of Department policy, with failing to obtain medical aid in contravention of Department policy; and

with 'abusive and improper treatment of a prisoner' in contravention of City ordinance.

The Internal Affairs Division ("IA") conducted an exhaustive investigation on all three charges. They interviewed a number of people, including Sanders;¹ they reviewed multiple videos from the cell, booking area, garage, and patrol cars; they researched Department policies and procedures, and the law; and they consulted with the Department's own use of force expert. Burton ordered that the investigation be complete by Friday, September 16, 2011. At the conclusion of the investigation, Internal Affairs determined that Sanders had acted within policy and procedure when he entered the cell and used force to handcuff Baker to the ring, and that the force was not excessive under the totality of the circumstances. Sanders had furthermore fully complied with policy by requesting paramedics after determining Baker was injured, because the Department did not have any policy requiring an officer to render first aid or to physically remain with an injured prisoner while waiting for medics. Because Sanders had followed the use of force and medical aid policies, Internal Affairs also determined that he had not abused or improperly treated a prisoner. Tr. 80-119. The report was reviewed and approved by the IA division supervisors, Lieutenant Shouse-Jones and Captain Bernhard. Tr. 77.

On September 16, Burton distributed the Internal Affairs investigation to Sanders' chain of command: his direct supervisor, Sergeant Houston; his lieutenant, Chris Kelley; his captain, Brad Nelson; and the Deputy Chief, Steve Monticelli. **Each and every one of them concurred completely with the Internal Affairs determinations.** Tr. 530, 545-46, 552-53.

Nonetheless, the Chief convened a meeting of that chain on Monday, September 19, 2011, and included the Internal Affairs division during the initial part of it. Burton told IA that

¹ Baker's attorney refused to allow him to be interviewed. Tr. 469.

their investigation was “all wrong,” and that they “had not looked at the facts correctly.” Tr. 519, 534-45. Despite the fact that IA, Sanders’ Sergeant, his Lieutenant, his Captain, and the Deputy Chief **all** agreed that he had not done anything wrong, Burton ‘invalidated’ the IA findings and instructed each to recommend a range of punishment. Tr. 531, 553.²

Burton sustained all three charges against Sanders, and fired him as of September 21, 2011. Sanders used the City grievance procedure and had a hearing before the City’s Personnel Advisory Board (“PAB”) on November 15, 2013.³ The PAB’s recommendation is advisory, and the City Manager makes the final decision. He affirmed the termination and entered Findings of Fact and Conclusions of Law. In those, he asserted that the PAB had found that the Chief acted within his authority to terminate Sanders regarding the use of force policy and the ordinance regarding abusive or improper treatment of a prisoner, but did not find any violation regarding the policy on providing medical attention.⁴ The City Manager’s final determination is that Sanders violated the use of force policy and abusive/improper treatment ordinance, but apparently not the policy on medical attention. FOF/COL § III.1.

² The events of this meeting were even falsely conveyed to the undersigned in an e-mail, in which it was said that each person had **sustained** the use of force and abusive treatment charges when that was clearly not true. See Exhibit E.

³ The lengthy delay between the firing and the hearing was due to a special prosecutor filing a third-degree assault charge against Sanders. When advised by the undersigned that he had violated Sanders’ constitutional rights by reviewing the entire IA file, that person promptly withdrew from the case, resulting in additional delays. Sanders was acquitted immediately after a bench trial in front of the Honorable Carol England. The Personnel Advisory Board had properly decided to wait until that case ran its course before holding the administrative hearing.

⁴ The City has refused to provide Sanders with an actual copy of the PAB’s recommendation. The PAB hearing was “open” under the City’s ordinances, and Sanders requests the Court compel the City to provide a copy of the recommendations as part of the record.

II. ARGUMENT

A. Standard of this Court's review.

This is judicial review of any agency decision under Chapter 536 RSMo. Because there was an adversarial hearing in front of the PAB, this is ostensibly a contested case. See Cox v. City of Columbia, 764 S.W.2d 501, 503 (Mo. App. W.D. 1989). Therefore, the scope of review is governed by section 536.140 RSMo. Under that section, the Court should reverse the agency's action if it is unsupported by competent and substantial evidence upon the whole record; is arbitrary, capricious or unreasonable; or involves an abuse of discretion. § 536.140.2(3), (6) and (7) RSMo.

"Substantial evidence is merely evidence which, if true, has probative force upon the issues, i.e., evidence favoring facts which are such that reasonable men may differ as to whether it establishes them." Clark v. Board of Dir. Of School Dist. of Kansas City, 915 S.W.2d 766, 773 (Mo. App. W.D. 1996). Lack of substantial evidence indicates that an administrative body's findings are arbitrary and unreasonable. Stacy v. Dept. of Social Services, 147 S.W.3d 846, 852 (Mo. App. S.D. 2004). "Whether an action is arbitrary focuses on whether an agency had a rational basis for its decision." Id. "Capriciousness concerns whether the agency's action was whimsical, impulsive, or unpredictable." Id. "To meet basic standards of due process and to avoid being arbitrary, unreasonable, or capricious, an agency's decision must be made using some[thing more] than mere surmise, guesswork, or 'gut feeling.'" Id. "An agency must not act

in a totally subjective manner without any guidelines or criteria.” Id.⁵

An abuse of discretion is exemplified by a decision “so unreasonable and arbitrary that it shocks the sense of justice and indicates a lack of careful consideration.” State v. Palmer, 193 S.W.3d 854, 857-58 (Mo. App. S.D. 2006). It is “an untenable . . . act that defies reason or works an injustice.” Bydalek v. Brines, 29 S.W.3d 848, 855 (Mo. App. S.D. 2000). Notably, the City itself requires that its rules and regulations are to be administered fairly, consistently and equitably. See City Code, § 19-26

Clearly, the Court’s alternative bases for reversing an agency’s decision under section 536.140 are heavily intertwined. In this case, just as clearly, all of those standards are met.

B. The City Manager’s decision.

The City Manager asserts that Sanders’ use of force against Baker was unnecessary, unreasonable and retaliatory. FOF ¶¶ 46 – 63. He claims it was unnecessary essentially because Baker was inside a locked cell, banging and yelling for water, and Sanders therefore had no reason to go back into the cell. Id. at ¶¶ 52 – 59. He claims it was unreasonable for essentially the same reason – that Baker was not doing anything dangerous and therefore Sanders had no reason to push him. Id. at ¶¶ 46 – 51. He claims it was retaliatory because Sanders made a sarcastic comment in the booking room afterwards, therefore he had “a revengeful intent.” Id. at ¶¶ 60 – 63.

The City manager also asserts that Sanders’ treatment of Baker was both abusive and improper. He bases this on the force used against Baker, that Sanders left Baker in the cell for

⁵ “Arbitrary” is also defined as “founded on prejudice or preference rather than on reason or fact.” BLACK’S LAW DICTIONARY 100 (7th ed. 1999). “Capricious” means “contrary to the evidence or established rules of law.” Id.

twelve minutes before a paramedic arrived, that Sanders took away Baker's toilet paper, and that Sanders told Baker the only water in the cell was in the toilet. Id. at ¶¶ 64 – 69.

In light of the whole record, the City's justification for firing Sanders constitutes an egregious injustice, and there is no evidence whatsoever to support it, other than the Chief of Police's personal opinion that the video was "embarrassing" to the Department.

C. The Columbia Police Department expected and required its officers to enter a cell and handcuff a prisoner to the ring if he pounded on the cell door.

The starting point for this Court must be the fact that the evidence was **uncontroverted** and **uncontested** that it was the practice, procedure, custom, expectation, and requirement of the Columbia Police Department that any prisoner who was pounding on a cell door, and did not stop after being given a warning, was to be handcuffed to the ring; and furthermore, that if the prisoner would not comply with directions to move to the ring, then force was to be used to do it. There was no discretion – it was simply to be done. It was what the officers were trained to do by their field training officers and supervisors, and what the supervisors expected to be done.⁶ It did not matter why the person was pounding. There was no waiting, no getting the prisoner a cup of water. For at least 18 years, if someone pounded on the cell door and refused to stop, they

⁶ Sanders, see Tr. 337-39 (anyone pounding on a cell door after given a warning was handcuffed to the ring; it had been that way for his entire 18 years); Officer Kasper, see Tr. 271-72 (custom, practice, training and expectation that anyone banging on a cell door was handcuffed to the ring, force was used if they refused); Officer Sedgwick, see Tr. 291-94. (same; "if they caused any kind of disturbance in the holding cell, you put them on the ring." "[W]e were told that was the policy."); Officer Crites, see Tr. 401-03 (same; "When someone beats on the holding cell, this is what we do. . . [I]t wasn't a discretionary thing . . ."); Sergeant Jason Jones, IA investigator, see Tr. 440 (practice and custom of Department, that is how he was trained); Sergeant Lloyd Simons, IA investigator, see Tr. 521-23 (same; expectation and no question that if someone continued pounding on the door after given warning, they were going on the ring); Sergeant Chad Craig, use of force expert, see Tr. 589-90 (practice and expectation); Captain Nelson, see Tr. 551 (same).

were handcuffed to the ring. If they refused to go voluntarily, force was used to do it.

Sanders gave a warning, but Baker refused to stop. He was expected to enter the cell and, when Baker refused commands to comply voluntarily, he was expected to use force. Therefore, any finding by the City Manager that Sanders could have or should have done something other than enter Baker's cell is utterly and completely contradicted by the uncontested evidence. Whether the Department's policy was a good one or a bad one is immaterial; the only relevant fact is that by entering the cell, Sanders was complying with the express directives of the Columbia Police Department. He was required to enter the call and to use force on Baker.

"Capriciousness" includes acting contrary to the evidence or the rules of law. In this case, the City Manager's finding that it was unnecessary to enter the cell is capricious and unsupported by competent and substantial evidence because all of the evidence establishes that it was, in fact, the Department's rule that officers were obligated to enter a cell under these very circumstances. The City is entitled to dislike its policies, customs, practices, expectations and requirements. It is entitled to rethink them, and to change them – which, subsequent to these events, it did for both use of the rings and medical attention. It is not entitled to damn an employee by changing the rules after the fact, then criticizing him for doing exactly what he was supposed to do. That is the opposite of fairness, consistency and equity.

D. Sanders' use of force was reasonable under the totality of the circumstances.

Once the falsity of the City's "necessity" findings are exposed, the question becomes whether Sanders' use of force against Baker was reasonable under the totality of the circumstances. That involves the test of "objective reasonableness," which relies not on the luxury of 20/20 hindsight, but on what the officer knows and reasonably believes at the time. See Graham v. Connor, 490 U.S. 386, 396 (1989); Exhibit 22. Internal Affairs rendered a

thorough and detailed assessment of the situation, taking into account what Sanders knew and believed about Baker at the time: that Baker was strong and fit; that Baker had fought with two (and in fact Sanders reasonably believed three) fit officers for over two minutes, including unlatching one officer's gunbelt; that when pepper sprayed, Baker had continued to fight; that Baker seemed to feel no effects from Crites' wristlock; that Baker had indications of having done time in a real prison, and therefore may have been exposed to techniques for assaulting officers in cells; that Baker was intoxicated, and therefore was likely to fluctuate in his emotional state; and that Baker had recovered substantially from the effects of the pepper spray – at least, substantially enough to fight – by the time he went into the holding cell.

When Baker continued to pound on the cell door, all three officers knew they were going in to handcuff Baker to the ring. They also expected Baker to fight rather than to comply. Tr. 406. So, in order to avoid the potential for another knock-down, drag-out fight – this time within the confines of a holding cell – Sanders entered the cell and made a split-second decision not to do a leg sweep, and instead to push Baker over onto his rear end.

The Police Department's own use of force trainer, the expert in the field as far as the Department was concerned, agreed that Sanders' use of force – including using one hundred percent of his strength in the push – was reasonable, and fell within the Department's training, policies and procedures. Tr. 593-96. He furthermore agreed that the result of the push – Baker going all the way back into the wall, rather than falling over or stumbling back – was **not** a reasonably likely outcome. Tr. 594. Even Chief Burton agreed that he would not have expected that to happen. Tr. 636.

The City Manager, though, disregarded all of this evidence and concluded that Sanders' use of force was unreasonable. His conclusions are themselves arbitrary, capricious and

unreasonable because they start from the false premise that Sanders was not justified in entering the cell in the first place. On the contrary, though, because Sanders was expected put Baker on the ring, he had to open the cell door. Once the cell door was open, the situation took on the same heightened and tense parameters of any other face-to-face contact between officer and suspect. Therefore, when the City Manager makes statements such as that “Baker was in a locked holding cell and posed no immediate threat” (FOF ¶ 48a) or that “[t]here was not a rapidly evolving split second decision required” (FOF ¶ 50), he is simply incorrect. The proper factors to consider were principally Baker’s history of violence, his strength, the fact that only one officer could go through the door at a time, and the potential for a fight among four men in a concrete holding cell. Those factors demanded quick, decisive force. At that point, the question is whether Sanders’ push was reasonably likely to launch Baker into the back wall. The Department’s expert and its Chief said it was not. The City Manager’s ultimate conclusion that it was reasonably like (FOF ¶ 48m) defies the evidence, and amounts to no more than guesswork and surmise. Thus, the City Manager’s decision that Sanders’ force was unreasonable is arbitrary, capricious and unreasonable.

E. There was no evidence to support any finding that Sanders’ use of force was retaliatory.

The City Manager further concluded that Sanders had a “revengeful intent” when he pushed Baker. FOF ¶ 62. He accused Sanders of “hid[ing] in the hallway” and that the “speed and ferocity” of the push indicated this intent. *Id.* He also relied on a comment Sanders made to other officers in the booking room afterwards, that Baker had “lost round two.” *Id.* at ¶ 61.

There is no evidence to support any of these findings. No one testified that Sanders “hid” in the hallway outside Baker’s cell. On the contrary, the only evidence in the case was that all three officers – Sanders, Crites and Hibler – expected Baker to continue pounding on his cell

door, and so moved into a nearby position to find out. They stayed out of sight so as not to antagonize Baker. Tr. 334-35. There was absolutely no evidence to the contrary.

As far as the comment in the booking room, Sanders did make it. However, the officers who were there agreed that police make sarcastic comments after situations like this, and they agreed Sanders did not have a shred of retaliatory or malicious intent in making it. Tr. 269-70, 290-91. Moreover, the City Manager contends that the force was in retaliation for Baker's threats and resistance during his initial arrest. FOF ¶ 60. This completely ignores the fact that Sanders spent a good bit of time developing a rapport with Baker and irrigating his face in the garage. The City Manager fails to explain neither why an officer would assist a prisoner, then – only after the prisoner does something to re-engage contact – retaliate against him for previous conduct, nor why the officer would use verbal judo to attempt to gain compliance first. The reason he fails to explain these is because his conclusion is nothing but conjecture, surmise and guesswork, and therefore is arbitrary, capricious and unreasonable.

F. Sanders did not abuse or improperly treat Baker.

The City made much of the fact that the allegation of abuse/improper treatment of a prisoner stood separate from the use force and medical aid policy allegations. The ordinance in question (which is applicable to all City employees) states that certain violations may be considered just cause for suspension or discharge, among them: “Abusive or improper treatment of a client, prisoner, citizen, or other individual in the community or on the city payroll.” City Code § 19-225(a)(3). The City Manager relied on four things to support his sustaining this allegation: Sanders use of force in general; his having left Baker in the cell, unattended, for twelve minutes; his having taken away Baker's toilet paper; and his having made the comment about the only water in the cell being the toilet water.

1. The justifications enumerated on this charge are not supported by evidence that they are “abusive” or “improper.”

With respect to Sanders’ using force on Baker, the facts clearly establish that he was justified to do so, and that the level of force was reasonable. The other three “justifications” on this charge are irrelevant.

First, it is crucial to note that there was no evidence the Police Department has ever trained its officers on **anything** about the ordinance, other than its own normal policies and procedures. See, e.g., Tr. 140-42, 348, 493-94. Therefore, it is patently unfair to take some action which expressly falls within, and is consistent with, policy and say that it is nonetheless abusive or improper. For instance, everyone but the Chief determined – including the PAB and the City Manager – that Sanders **did not** violate Departmental policy with respect to providing medical aid, which necessarily means it was within policy to leave Baker unattended for twelve minutes while the Station Master observed him on the monitor. Yet in the next breath, Sanders is found to have abused Baker by **not** physically remaining with him. It is unfair, inconsistent and inequitable to fault Sanders for failing to do something that **nobody** has ever required be done before. That is the embodiment of capriciousness.

As for the toilet paper, Sanders’ uncontroverted testimony was that prisoners sometimes take toilet paper and clog the toilet, resulting in overflow. Tr. 328-29. There was no evidence that was untrue, and in fact Sergeant Jones confirmed it was standard practice **not** to leave toilet paper in the cells. Tr. 485-86. For the City Manager to seize on it as an indication of abuse is absurd. The same is true for Sanders’ comment to Baker about the toilet water. The evidence was likewise uncontroverted that Sanders never told Baker to drink from the toilet; he merely told him that it was the only source of water in the cell. Tr. 332-33. Setting aside the fact that that was a completely true observation, that it was not Sanders’ fault the water did not work and

that there were no decontamination wipes where they were supposed to be, it certainly does not support a finding of abusive or improper treatment. The City Manager apparently ascribes some motivation by Sanders in making the comment as an effort to “escalate” the situation, but there was absolutely no evidence of that.

The facts do not support any conclusion that Sanders abused Baker or treated him improperly. The City Manager’s determination is nothing more than a post-hoc justification to support an unsupportable charge.

2. As applied to a police officer under the circumstances, the ordinance is so vague and ambiguous, and its enforcement so subjective based on the whim of the City, that it is unconstitutional.

The constitutionality of a municipal ordinance is within the permissible scope of judicial review of an administrative decision. Tgb, Inc. v. City of St. Louis Board of Building Appeals, 154 S.W.3d 353, 355 (Mo. App. E.D. 2004). An ordinance is unconstitutionally vague if a person of ordinary intelligence is not able to understand the proscribed conduct. See Board of Management of Parkway Towers Condominium Association, Inc. v. Carcopa, 403 S.W.3d 590, 592 (Mo. 2013).

Vagueness, as a due process violation, takes two forms. Conseco Finance Services v. Mo. Dept. of Revenue, 195 S.W.3d 410, 415 (Mo. 2006). “One is the lack of notice given a potential offender because the statute is so unclear that ‘[persons] of common intelligence must necessarily guess at its meaning.’” Id. (citation omitted). “The second is that the vagueness doctrine assures that guidance, through explicit standards, will be afforded to those who must apply the statute, avoiding possible arbitrary and discriminatory application.” Id.

As applied to a Columbia Police Officers, the ordinance is unconstitutionally ambiguous. Police Officers are trained according to the Department’s policies, which mandate certain things

and proscribe certain things. Both the use of force and the provision of medical aid fall within the ambit of the policies. By the City's application of the ordinance, though, an officer who follows those policies with respect to a prisoner can still be found in violation of the law purely based on the Chief's or City Manager's personal interpretation of what it means to abuse someone or treat them improperly. The City then has an unbridled, unqualified and completely subjective ability to say that **any** conduct is "abusive" or "improper" – even when the conduct met every requirement of the Department's policies, procedures, customs, practices, training and expectations. The Department sets explicit standards. When all of the evidence indicates those standards were followed and met, it is arbitrary, capricious, unreasonable, and an abuse of discretion to simply pull some act out of the sky and say that it violates the ordinance. Because the ordinance makes the decision of what is abusive or improper so utterly subjective and random, it is unconstitutionally vague and Sanders' termination based on the ordinance cannot stand.

G. Sanders' termination was pre-determined by the Chief of Police, and nothing was going to change his mind; thus, his firing was capricious.

Sanders' fate was sealed the moment the Chief of Police saw the video, and nothing was going to deter him from firing Sanders. Burton told his command staff he was going to fire Sanders before any investigation was ever done. Once the investigation was done, Burton called in his IA unit and lambasted them for essentially 'covering-up' for Sanders. He went on talk radio and said that IA had "botched" the investigation; that it was just a justification to try to

protect an officer, and the integrity of the investigation was compromised. Tr. 227-28.⁷ He accused the supervisory chain of letting “personal” relationships with Sanders color their views. Tr. 628.⁸ Once the falsity of the supervisors’ true recommendations was exposed, he accused them of being subversives, bad apples, and Captain Nelson of being a liar. Tr. 632-33. In fact, his only motivation was the “embarrassment” that would come to the Department when the incident became public. See Tr. 188.

A capricious action is one taken based on impulsiveness. Chief Burton impulsively determined that Sanders would be fired, he told command staff that was the case, and he stuck by that promise. The City Manager’s decision is clearly a cobbled-together, post-hoc justification to affirm that decision in the face of a contentious situation.

III. CONCLUSION

Rob Sanders’ termination was arbitrary, capricious, unreasonable, and an abuse of discretion. All of the evidence supported only one legitimate conclusion: Sanders was following the rules of the Columbia Police Department when he entered Baker’s cell to handcuff him to the ring, and he was following the rules when he used force to do it. That force was reasonable under the totality of the circumstances, and it was not reasonably likely that Baker was going to fly backwards the way he did. The Chief himself admitted as much, and so it is clear that the justification for termination is based entirely on hindsight. It did happen, so Sanders has to pay

⁷ During the PAB, the City attempted to highlight this as an issue by accusing the IA investigator of not following proper procedure and not gathering certain information. Not surprisingly, it was the first time the investigator had ever heard any of these sorts of specific criticisms. Tr. 487-91.

⁸ This was as he attempted to explain why every one of the supervisors testified that they **did** agree with the IA findings, despite his having earlier testified that the IA report “didn’t convince” most of the command staff, just as it “didn’t convince” him, and despite the misleading information in the e-mail sent to counsel. Tr. 185.

the price.

The City of Columbia is obligated to treat employees with fairness, consistency and equity. Rob Sanders has yet to experience a single one of those qualities during this saga. This Court must remedy the injustice of this case and reverse the City's decision to terminate him.

WHEREFORE Plaintiff Rob Sanders requests an Order and Judgment from this Court reversing the decision of the City of Columbia City Manager and reinstating him, with all back pay due and owing him; and for such other relief as the Court deems just in the premises.

Respectfully submitted,

ARMSTRONG TEASDALE LLP

By: /s/ Scott T. Jansen
 Scott T. Jansen #57393
 3405 West Truman Boulevard, Suite 210
 Jefferson City, Missouri 65109-5713
 573.636.8394
 573.636.8457 (Facsimile)
 sjansen@armstrongteasdale.com

ATTORNEY FOR PLAINTIFF

CERTIFICATE OF SERVICE

The undersigned hereby certifies that the foregoing was filed using the Missouri Court Electronic Filing System this 7th day of July, 2014.

/s/ Scott T. Jansen